

TENTATIVE RULING

Case: **Portfolio Recovery Associates, LLC v. Beltran**
Case No. CV2025-1114

Hearing Date: **April 29, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Portfolio Recovery Associates, LLC's unopposed motion to enter judgment pursuant to terms of settlement agreement is **GRANTED**. (Code Civ. Proc., § 664.6; McGovern decl., ¶¶ 2-10, Exhibits A & B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, the Court will execute the proposed order and judgment, lodged on March 27, 2026.

TENTATIVE RULING

Case: **Rosales v. Mariani Nut Company**
 Case No. CV2025-2290

Hearing Date: **April 29, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Mariani Nut Company's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Stenson Decl.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8; see also *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 380-381.) Defendant has established the existence of an arbitration agreement between defendant and plaintiff Andres Rosales. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; *Jenks, supra*, 243 Cal.App.4th at p. 8; Stenson Decl., ¶¶ 5-13, Exhs. 1-6.) As this motion is unopposed, plaintiff has failed to show that a defense exists, which would prevent the Court from compelling arbitration. (See *Jenks, supra*, Cal.App.4th at p. 8.)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.